

MUTUAL NON-DISCLOSURE AGREEMENT

This Mutual Non-Disclosure Agreement ("Agreement") is entered into as of **February 25, 2026** by and between:

- **Boss Key LLC**, a New Jersey limited liability company with a principal place of business at **1596 Jason Dr, Cinnaminson, NJ 08077** ("Boss Key"), and
- **St. Moritz Security Services, Inc.**, with a principal place of business at **4600 Clairton Boulevard, Pittsburgh, PA 15236** ("St. Moritz").

Boss Key and St. Moritz are each a "Party" and together the "Parties."

1. Purpose

The Parties wish to evaluate and discuss a potential business relationship related to proposal support services, including an AI-assisted RFP digest and related implementation work (the "Purpose"). In connection with the Purpose, each Party may disclose Confidential Information to the other.

2. Definition of Confidential Information

"Confidential Information" means any non-public information disclosed by or on behalf of a Party ("Disclosing Party") to the other Party ("Receiving Party"), whether in written, oral, visual, electronic, or other form, including:

- business plans, customer and prospect information, pricing, and financial data;
- technical information, software, source code, system architecture, security controls, prompts, workflows, and model configurations;
- RFPs, requirements matrices, proposal drafts, compliance mappings, and operational procedures;
- personally identifiable information and any other information marked or reasonably understood to be confidential.

Confidential Information does not include information that the Receiving Party can demonstrate:

1. was publicly available at the time of disclosure or becomes public through no fault of the Receiving Party;

2. was lawfully known by the Receiving Party before disclosure by the Disclosing Party;
3. is lawfully received from a third party without restriction; or
4. is independently developed by the Receiving Party without use of the Disclosing Party's Confidential Information.

3. Non-Use and Non-Disclosure

The Receiving Party will:

1. use Confidential Information only for the Purpose;
2. not disclose Confidential Information except to its employees, contractors, legal counsel, accountants, and advisors who have a need to know for the Purpose and are bound by confidentiality obligations at least as protective as this Agreement; and
3. protect Confidential Information using at least the same degree of care it uses to protect its own confidential information of similar sensitivity, and no less than reasonable care.

4. AI and Data Handling Restrictions

Without the Disclosing Party's prior written consent, the Receiving Party will not:

1. use the Disclosing Party's Confidential Information to train or fine-tune public or shared AI models;
2. permit any third-party AI provider to retain Confidential Information except as strictly necessary to provide contracted services for the Purpose;
3. use Confidential Information for benchmarking, product improvement, or any purpose outside the Purpose.

If Boss Key provides AI services in St. Moritz's environment, deployment, access controls, retention settings, and logging requirements will be documented in a separate statement of work or security addendum.

5. Required Disclosure

If the Receiving Party is required by law, regulation, or valid legal process to disclose Confidential Information, it will (to the extent legally permitted) provide prompt written notice to the Disclosing Party and reasonably cooperate in seeking confidential treatment or a protective order.

6. Return or Destruction

Upon written request by the Disclosing Party, the Receiving Party will promptly return or destroy Confidential Information, except for archival copies retained in

ordinary-course backups or as required by law, which remain subject to this Agreement.

7. Term and Survival

This Agreement starts on the Effective Date and remains in effect for **three (3) years**, unless earlier terminated in writing by either Party. Confidentiality obligations for disclosed information survive for **five (5) years** after disclosure, except trade secrets remain protected as long as they qualify as trade secrets under applicable law.

8. No License or Obligation

No license or other rights are granted by this Agreement except the limited right to evaluate Confidential Information for the Purpose. Neither Party is obligated to proceed with any transaction or engagement.

9. Disclaimer

All Confidential Information is provided "as is." Except as agreed in a definitive written agreement, neither Party makes warranties regarding completeness or accuracy.

10. Remedies

The Parties acknowledge unauthorized use or disclosure of Confidential Information may cause irreparable harm for which monetary damages may be inadequate. The Disclosing Party may seek injunctive relief in addition to any other available remedies.

11. Governing Law and Venue

This Agreement is governed by the laws of the State of **New Jersey**, without regard to conflict-of-laws principles. The Parties consent to exclusive jurisdiction and venue in state or federal courts located in **New Jersey**, unless otherwise agreed in writing.

12. Miscellaneous

1. This Agreement is the entire agreement regarding its subject matter and supersedes prior discussions on confidentiality.
2. Any amendment must be in writing and signed by both Parties.
3. Neither Party may assign this Agreement without prior written consent, except to a successor in connection with merger, acquisition, or sale of substantially all assets.

4. If any provision is held unenforceable, the remaining provisions will remain in full force and effect.
 5. This Agreement may be signed in counterparts and by electronic signature, each of which is deemed an original.
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Signatures

BOSS KEY LLC

By: _____

Name: **Timothy Charles Semenza**

Title: **Sole Member**

Date: _____

ST. MORITZ SECURITY SERVICES, INC.

By: _____

Name: **Eric Viletto**

Title: **Vice President of Sales**

Date: _____